

July 27, 2026
Dept. 9
Probate Tentative Rulings

7.	25PR0357	THE ESTATE OF RICHARD R. HERRMANN
FINAL DISTRIBUTION HEARING		

Letters Testamentary were issued on February 5, 2026, granting Petitioner full authority under the Independent Administration of Estates Act.

A Final Inventory and Appraisal was filed on April 29, 2026. At the time the inventory and appraisal was filed, the change of ownership statement with the county recorder or assessor in each county where the decedent owned real property at the time of death, as provided in section 480 of the California Revenue and Taxation Code, was filed.

Waivers of Account were executed by the sole beneficiary entitled to distribution under the estate. No Waivers of Notice were executed.

Proof of Service of Notice of the hearing on the Petition was filed on June 15, 2026. No one has filed a request for special notice in this proceeding.

The proposed distribution of the estate includes full distribution to Launa Herrmann, Trustee of the Hermann Family Trust dated October 6, 1994.

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

1. That no federal or California estate taxes are payable or that they have been paid;
2. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any, have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will; and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

Petitioner confirms that no federal or California estate taxes are payable, nor are any California or federal income or personal property taxes payable.

The Petition requests:

1. The administration of this estate be closed;
2. The first and final report on waiver of account of Petitioner be settled, allowed, and approved as filed;
3. All acts and proceedings of Petitioner as personal representative as set forth in this petition be confirmed and approved;

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4. Petitioner be authorized to pay Shiells and Hammer \$24,394.00 as statutory compensation for services rendered to Petitioner and the estate;
5. Distribution of the estate in Petitioner's hands and any other property of Decedent or the estate not known or discovered that may belong to the estate or in which the decedent or the estate may have any interest be made to the persons entitled to it, as set forth in the petition;
6. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petition may be discharged and released from all liability that may be incurred thereafter.**

TENTATIVE RULING #7:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, AUGUST 2, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR BY ZOOM, PLEASE CONTACT THE COURT AT (530) 621-5867 AND MEETING INFORMATION WILL BE PROVIDED.